

**FEDERAL MARITIME COMMISSION**

**USL AUTO EXPORTING INC.,**

**COMPLAINANT,**

**v.**

**Docket No. 23-13**

**EASY SHIPPING CORPORATION**

**RESPONDENT.**

**Motion for Judicial Assistance and Request for Guidance Pursuant to FRCP Rule 37 Due to Non-Communication by Respondent**

Complainant respectfully informs the Commission of a situation that has arisen in the case against Respondent, Easy Shipping. Despite the Complainant's best efforts to comply with § 502.69(g), which mandates good faith efforts by the parties to discuss anticipated motions and narrow areas of disagreement, a significant challenge has been encountered.

Since December 28, 2023, Complainant has made numerous attempts to engage Easy Shipping in a dialogue regarding the Joint Status Report, primarily through email communications. Regrettably, as of the date of this letter, Easy Shipping has not responded to any of the Complainant's communications.

This lack of response from Easy Shipping has hindered Complainant's ability to ascertain Easy Shipping's position and, if necessary, to narrow the areas of disagreement as required by the Commission's procedural guidelines. The Complainant remains committed to resolving matters amicably and efficiently, in accordance with the Commission's guidance.

In these circumstances, and in alignment with Rule 37 of the Federal Rules of Civil Procedure, Complainant seeks the Court's guidance and intervention. Rule 37 addresses situations where parties, such as Easy Shipping, fail to cooperate in the Joint Status Report, providing for various sanctions as potential remedies.

Despite diligent efforts and repeated attempts to engage in the Joint Status Report process as required under the Commission's order, Easy Shipping has failed to respond and complete the Joint Status Report.

This non-communication is significantly impeding the progress of this case and the Complainant's ability to prepare for trial. Therefore, the Complainant respectfully requests the Commission to compel Easy Shipping to respond to the Joint Status Report requests.

Complainant requests guidance from the commission on how to proceed under these challenging circumstances with Easy Shipping. While prepared to file a motion if necessary, Complainant prefers to resolve this matter without further Commission intervention, if possible.

Thank you for your attention to this important matter. Complainant apologizes for any inconvenience this situation may cause and remains committed to following the Commission's direction.

Dated: January 26, 2024

Respectfully submitted,

**USL AUTO EXPORTING INC.,**

By: /s/ ANIS HOUSSEIN

ANIS HOUSSEIN

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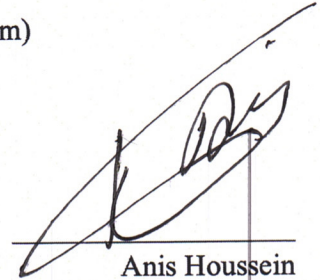
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*Vice President for Claimant USL AUTO EXPORTING INC*

### **CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on the 26th day of January 2024, a true and correct copy of the foregoing Motion for Judicial Assistance was served via electronic mail on:

EASY SHIPPING CORPORATION (easyshippingcorp@gmail.com)



Anis Houssein